

HOUSE No. 4123

The Commonwealth of Massachusetts

PRESENTED BY:

Kate Donaghue and Andres X. Vargas

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the distribution of opioid antagonists at correctional facilities.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kate Donaghue</i>	<i>19th Worcester</i>	<i>1/17/2025</i>
<i>Andres X. Vargas</i>	<i>3rd Essex</i>	<i>1/17/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>6/3/2025</i>

HOUSE No. 4123

By Representatives Donaghue of Westborough and Vargas of Haverhill, a petition (accompanied by bill, House, No. 4123) of Kate Donaghue and Andres X. Vargas relative to the distribution of opioid antagonists at correctional facilities. Public Safety and Homeland Security.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the distribution of opioid antagonists at correctional facilities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 126 of the General Laws is hereby amended by adding the following section:-

2 Section 41. (a) For the purposes of section, the following words shall, unless the context
3 clearly requires otherwise, have the following meanings:

4 “Department”, the department of correction established by section 1 of chapter 27.

5 “Opioid antagonist”, naloxone or any other drug approved by the federal Food and Drug
6 Administration as a competitive narcotic antagonist used in the reversal of overdoses caused by
7 opioids.

8 “Pharmacist”, any pharmacist registered in the commonwealth to dispense controlled
9 substances, and including any other person authorized to dispense controlled substances under
10 the supervision of a pharmacist registered in the commonwealth.

11 (b) Any correctional facility, county correctional facility, state prison, jail or house of
12 correction in the commonwealth shall have a department approved pharmacist or designee
13 distribute 2 doses of opioid antagonists to an incarcerated individual when they are directly
14 released from a correctional facility, county correctional facility, state prison, jail or house of
15 correction.